

Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading. A motion to strike must be filed within the time provided to respond to a pleading. (Code Civ. Proc., § 435, subd. (b)(1).) A court has discretion to grant any motion to strike made outside that time frame, though. (Code Civ. Proc., § 436.) Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;” therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is “proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” This means that a plaintiff’s pleading asking for punitive damages must plead facts to support a finding of oppression, fraud, or malice. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “Malice” means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; “oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights; and “fraud” means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code, § 3294, subd. (c).) “Despicable” conduct refers to that which is “base, vile, or contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

Plaintiff alleges at page 4, lines 4 to 16, of the 1AC that Defendants’ agent harassed and intimidated her by filming her at her apartment despite being asked to leave and attempting to enter her children’s bedroom without permission. She also alleges that Defendants’ agent taunted her when she said she would call the police, saying “no one was going to help.” Most significantly, Plaintiff alleges that Defendants retaliated against her for complaining about habitability by evicting her. The first amended complaint contains valid factual allegations demonstrating malicious and/or oppressive conduct potentially supporting imposition of punitive damages.

Moving Defendants’ motion to strike the punitive damages allegations and prayer is denied.

BEASLEY, et al. v. SELENE FINANCE LP, et al.
Case No. CU26-03170

Motion by Attorney John R. Setlich to Be Relieved as Attorney of Record

TENTATIVE RULING

The motion is granted, with withdrawal effective only upon prompt service on the client of the signed order and no sooner than as indicated herein. Counsel shall continue to represent the Plaintiff Ronnie Baker through and including the Demurrer hearing which is currently scheduled for September 18, 2026.

DAILEY v. SOLANO COUNTY SHERIFF, ET AL.
Case No. FCS058487

Motion for Leave to File “First” Amended Complaint

TENTATIVE RULING

Plaintiff’s motion for leave to file the proposed amended complaint is granted. The second amended complaint that was wrongfully filed on July 7, 2026 shall be deemed to be filed on the date of filing of the formal order granting this motion.

Courts should apply a policy of great liberality in permitting amendment to a pleading at any stage of the proceedings as long as no prejudice has been shown to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761; *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487.) The party claiming to be prejudiced has the burden of demonstrating that prejudice. (See, *Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159 [court did not abuse its discretion because the defendants did not make an adequate showing of prejudice].) As long as proposed amendments relate to the same general set of facts, the introduction of new legal theories should not bar amendment. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Although Plaintiff improperly served a new and different version of the second amended complaint than the proposed amended pleading that had originally been lodged with Plaintiff’s motion, this latest version of the second amended complaint is still based on the same basic facts as the original complaint. All four of the “causes of action” now attempted to be alleged are merely different legal theories for recovery for the same injuries Plaintiff sustained while being transported by Defendant Duffield.

Defendants have made no showing that they would be substantially prejudiced by the grant of leave to amend. To the extent Defendants argue that Plaintiff’s assault and battery claims have been defectively pleaded, Defendants are free to challenge the sufficiency of the amended pleading by demurrer, motion for judgment on the pleadings, or other appropriate proceeding.
